

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 16, 2026
8:30 a.m./1:30 p.m.

20. JAYCEE THOMAS V. HUNTER MEANS

23FL0177

Petitioner filed a Request for Order (RFO) on May 1, 2026, seeking child custody and parenting plan orders, as well as a change in venue to Sutter County. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on June 3, 2026, and a review hearing on July 16, 2026. Proof of Service shows Respondent was mail served on May 15, 2026. The court notes this is a post-judgement request for modification, which requires compliance with Family Code section 215.

Both parties appeared at CCRC and reached full agreements. The parties submitted a stipulation and order to the court on June 3, 2026. The court has not signed the order, as there was additional handwritten language which had not been initialed by the parties.

Respondent has not filed a Responsive Declaration.

The court finds the agreement of the parties as set forth in the June 3, 2026, stipulation to be in the best interest of the minor. The court adopts the stipulation, including the additional handwritten language, as no party has filed an objection to the handwritten portion of the stipulation, as its orders. The court will sign and adopt the stipulation as its order.

As to the request to change venue, the court finds the RFO was not properly served on Respondent. Family Code section 215 requires personal service on all post judgement requests for modification, other than for child custody or child support orders, which requires address verification if the service is by mail. Petitioner served Respondent via mail. The court finds Respondent was not properly served with the request, and therefore, drops the request to change venue from calendar.

All prior orders not in conflict with these orders remain in full force and effect.

TENTATIVE RULING #20: THE COURT FINDS THE AGREEMENT OF THE PARTIES AS SET FORTH IN THE JUNE 3, 2026, STIPULATION TO BE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE STIPULATION, INCLUDING THE ADDITIONAL HANDWRITTEN LANGUAGE, AS NO PARTY HAS FILED AN OBJECTION TO THE HANDWRITTEN PORTION OF THE STIPULATION, AS ITS ORDERS. THE COURT WILL SIGN AND ADOPT THE STIPULATION AS ITS ORDER.

AS TO THE REQUEST TO CHANGE VENUE, THE COURT FINDS THE RFO WAS NOT PROPERLY SERVED ON RESPONDENT. FAMILY CODE SECTION 215 REQUIRES PERSONAL SERVICE ON ALL POST JUDGEMENT REQUESTS FOR MODIFICATION,

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OTHER THAN FOR CHILD CUSTODY OR CHILD SUPPORT ORDERS, WHICH REQUIRES ADDRESS VERIFICATION IF THE SERVICE IS BY MAIL. PETITIONER SERVED RESPONDENT VIA MAIL SERVICE WITHOUT ADDRESS VERIFICATION. THE COURT FINDS RESPONDENT WAS NOT PROPERLY SERVED WITH THE REQUEST, AND THEREFORE, DROPS THE REQUEST TO CHANGE VENUE FROM CALENDAR.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.